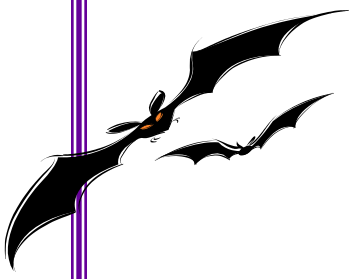
Welcome to the LVNA

Villager

The Newsletter of the Lakewood Village Neighborhood Association

Volume 57 Number 10 | Circulation: 1,650 | October 2013 | Sunnyvale, California | Editor: Phyllis



Monthly Meeting: Wednesday, October 9th

At 7:00 pm at the Lakewood Park Building

Our guests: Sunnyvale Council Candidate Forum

LVNA Parade—December 7th at 11am—1pm

President's Column



-Judy Fernandez

Happy Fall Everyone!

September was a great month.
Our monthly meeting had a guest speaker from the Housing and Human Services. They talked about housing options the City of Sunnyvale offers. Check their website for more information and how you can qualify for help with housing. **sunnyvale.ca.gov**

Annual Picnic
The annual picnic was a HUGE success. We had over 10 neighbors sign in and many more just stop by to chat and have lunch. Our raffle prizes were: Starbucks gift card, See's candy, AMC movies tickets and The Tech museum tickets. Everyone seems to have a really good time. It was nice meeting new neighbors and seeing old ones.

October Meeting
This month our meeting is very important to the north side of Sunnyvale. It is our City Council Candidate Forum! Six of the seven candidates have agreed to participate. It is essential to find out which ones are going to help get us more services out in this part of Sunnyvale. One subject to discuss is how the new 49er stadium will affect our neighborhood. Believe me it will in so many ways, just like the Mercado shopping center has. The City of Santa Clara is currently fighting with some of their neighbors over the lack of 5,000 parking spaces. Where do you think they will end up?

I hope that many of you will come out early to grab seats. We expect a huge turnout since the League of Woman Voters and Nextdoor website have been notified. See you on the 9th!

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Sunnyvale Elections: 3 Measure to Choose

By Fred Fowler

Greetings neighbors!
It has been a while since I wrote anything for The Villager. I'm writing now because it is election time again and there are three ballot measures to consider. Phyllis asked me if I might write an article about them, explaining them from the point of view of someone who has been on the "inside" of city government. After some thought I realized that I could point out some things about them that might not be obvious. I decided to take up the challenge. So, here goes...

(*Continued on page 3)*

City Candidate Forum

By Phyllis Fowler



On Wednesday, the 9th we will be holding our City Council Candidate forum. I will be the moderator and I would like to take the time to get some good questions prepared to grill our candidates.

Do you have questions for our Candidates? Do you have concerns about services in the North-side of Sunnyvale? This is your chance! If you have questions, email them to me at: sunnyphyl@gmail.com or drop them off at my house: 921 Lakebird Dr. I will try to get as many of them answered as time permits.◆

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Affordable Care Act Information

When: Oct 15, Nov 19
Time: 6 – 7 pm
When: Oct 23, Nov 27
Time: 10 – 11 am
Where: Columbia Neighborhood Center, 785 Morse Ave

Covered California is an online marketplace where Californians can compare and choose health plans from established health insurance companies.

The ***Columbia Neighborhood Center*** is providing monthly Information sessions on the state's marketplace where we can access high quality health care at an affordable cost through the federal Affordable Care Act. Individuals and families with income between 139% and 400% of the Federal Poverty Level should qualify for assistance for insurance premiums or out of pocket expenses, depending on specific requirements and income level.

The program provides changes to all health insurance starting January 1. 2014, and citizens will be required to have health insurance starting on that date. Open enrollment started on October 1, 2013 and ends on March 31, 2014.

Attendees to these information sessions will receive information on ways to sign up, including referrals to certified enrollment counselors.

IMPORTANT: Enrollment in Covered California is FREE and residents should report to Public Safety any phone calls, email or letters from organizations that claim to help with eligibility and registration for a fee. Scammers have already started taking advantage of people who are not informed about this program. ◆



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Sunnyvale School District Bond Measure G

Measure G is a $96 million school bond that will be used to continue the renovation and modernization of all district schools, providing students and teachers with comparable classrooms and facilities.

The bond will help provide schools with long term facility maintenance funds and updated instructional technology. The average yearly cost to property owners in the Sunnyvale School District will be $15 per $100,000 of assessed valuation (*not market value*).

Four schools in Sunnyvale still need to be modernized: Bishop Elementary, Cherry Chase Elementary, Ellis Elementary and Sunnyvale Middle School. They will be renovated to provide up-to-date classrooms, libraries and computer labs.

The bond will provide funds to:

- Renovate and upgrade older classrooms.
- Update and rebuild libraries and computer labs.
- Expand school offices and student support service areas.
- Add and renovate restrooms.
- Upgrade schools through the use of clean and efficient "Green" energy systems.
- Improve instructional technology.

The measure provides for strict accountability as bond funds are spent. A committee of local residents will be tasked with ensuring that all bond funds are spent as planned for the benefit of local students.

None of the money will be used for school administrator or teacher salaries. State lottery monies cannot be used to fund these school projects.

For more information about the Sunnyvale School District and the bond measure, please visit the District's web site at www.sesd.org.

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Sunnyvale Elections: 3 Measure to Choose

By Fred Fowler
(Continued from page 1)

Moving Elections to Even-numbered Years

Sunnyvale has held elections on odd numbered years for as long as I can remember. In the past, many cities and school districts in Santa Clara County did so as well. Every year was an election year, with the even years focusing on State and Federal races and odd years focusing on local issues and candidates.

This even/odd year arrangement was originally designed to help keep local elections from being overshadowed by the State and Federal ones. In even years voters are inundated with political messages, television commercials and junk mail from well-funded professional campaign organizations supporting partisan issues and candidates. In odd years the candidates and measures are not generally using the same kind of sophisticated tools and techniques. There is a better chance that a message printed on plain paper using a copy machine and distributed by volunteers has a chance of getting through to the voter.

So why change things now? The answer is money. The costs of elections are going up. Ballots have to be printed. Systems to count them have to be set up and maintained. An army of paid poll workers has to be recruited and trained. Each election costs the County hundreds of thousands of dollars to conduct.

To pay for it all, the County divides the bill among the jurisdictions involved. If all 15 cities in the County hold an election, the cost is split 15 ways. If only 4 cities hold an election on the same day, the cost is split only 4 ways. It is cheaper for a city to have an election at the same time that other elections are taking place because the city can benefit from the cost sharing that is the result.

Over time, to save costs, cities and school districts have switched from “odd” to “even” years. This makes it more expensive for the odd year elections. Sunnyvale School District recently switched to even year elections.

The City of Sunnyvale, Stanislaus school district and Orchard school district are the only participants this November.

Sunnyvale is now the only city in Santa Clara County that will hold an election this year. With so few participants to share costs with, the bill from the Registrar of Voters will be stiff indeed.

Changing our elections so that they will happen on even years would result in “6 figure” savings for the city. That is money that can be used to pay for park maintenance, Public Safety officers and library books.

The side effects of switching have to do with the kinds of campaigns that would be run and the kinds of people who would be likely to turn out and vote.

Turnouts in our odd year elections tend to be very low. I was elected twice to the City Council with only about 21% of the eligible voters actually bothering to cast ballots. Using voter history information obtained from the Registrar of Voters office it is possible to figure out who that 21% is likely to be. That meant I could focus my campaign resources on just those people.

There are about 55,000 voters in Sunnyvale. A typical campaign will have to send out at least 2 mailings, so the cost of a mailing campaign in Sunnyvale could be as much at $50,000.

Having an election with a low expected turnout reduces these costs tremendously. I won election in 1997 by aiming only at likely voters. I spent only $16,000 on the campaign (which was the money Phyllis and I had saved up to remodel her kitchen). I won by getting 9,000 votes out of only about 12,000 cast. By “self-financing” my campaign I was not very beholden to any “*special interests”.* The low turnout election made it possible for me to get elected in the way I did.

What will It be like to run for office in Sunnyvale during an even year election? The short answer is “more expensive”. Turnout will be higher, so there will be more mail to send out. That means that more money will be needed, and it will have to come from somewhere. The candidates will have to do more fundraising.

(*Continued on page 5)*



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ESL/Citizenship Placement Testing

When: October 18th
Time: 9:00 a.m. and 10:00 p .m.
Where: ACE/Room 6
Adult Education Center
791 W. Fremont Avenue
Cost: $40 non-refundable testing and processing fee for the 2013-2014 school year

All students must take an ESL placement test before enrolling in an ESL class. ESL classes are held at Columbia Middle School, Fremont High School, and the Adult Education Center.

Please be aware that, in paying the $40 fee, you may NOT get placed in a class if you are too advanced or if there is no seat available immediately.

To register for an ESL placement test, please visit the Adult Education office at 591 W. Fremont Avenue, room 1, or call (408) 522-2700 ◆

Citizenship Classes

When: November 16th through December 14th (no class on November 30th)
Where: ACE/Room 6
Adult Education Center
791 W. Fremont Avenue, Sunnyvale
Cost: Free

Beginning English Speakers class
This class will be a focus on acquiring English skills
Time: 11:30 a.m. to 2:30 p .m.
Intermediate English Speakers class
Time: 8:00 a.m. to 11:00 a.m.

In these citizenship classes, students will learn about American history and government, fill out the N-400 application, and practice for their oral interview.

There is no charge for the citizenship classes; however, all students must first take a placement test for which covers the entire 2013-2014 school year. **See above for test schedule!** (*This test is also valid for ESL classes*.) ◆

English as a Second Language at Columbia Middle School

Free Classes in English as a Second Language offered by the Sunnyvale-Cupertino Adult and Community Education on Monday and Wednesday evenings. ***Students must take a placement test before starting classes***. This test ensures that all students are placed at the correct level. Students must attend regularly to remain in the program. ◆



Special Free One-Day Class

When: Saturday, December 14th
Time: 11:45 a.m. to 1:45 p.m.
Where: Training Center
Adult Education Center
591 W. Fremont Avenue, Sunnyvale
Cost: Free

We will be offering a **special free one-day class** to help prospective citizens **prepare for their interview.** Volunteers from the community will act as interviewers. At this class there will also be an immigration expert who will talk about the interview process and answer questions. ◆

2014 English Conversation Class

When: Tuesdays, January 7th to April 29th
Time: 7:00 to 9:00 p.m.
Where: Columbia Middle School Library
739 Morse Ave. Sunnyvale
Cost: Free

Join our free English language class. We will practice listening, speaking, reading, and writing in small groups with trained instructors. All levels are welcome.

New Student Enrollment Date: December 10th
Adults only. No childcare available.

For more information:
Phone: 408-730-7800 or go to the website:
www.Visionliteracy.org ◆

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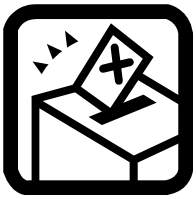
Sunday Services
9:30 a.m. Sunday School for all age
11:00 a.m. Worship Service

Wednesday
7:00 p.m. Corporate Prayer Meeting



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Sunnyvale Elections: 3 Measure to Choose



By Fred Fowler

(Continued from page 3)

None of this is new in politics, but it will be new to Sunnyvale politics.

Some could argue that a higher voter turnout would mean that the results of an election would better reflect the actual will of the community. Others argue that moving to an even year election might help moderate voices win out over extremists, because it would be less likely that a small group of angry people could end up being a majority of actual voters on election day. I believe there might be some validity to that notion.

So to summarize, moving elections in Sunnyvale to even years would make them cheaper for the city but more expensive for candidates. That would tend to favor "establishment" candidates with access to funding and professional resources and would put "grass roots" candidates at a disadvantage. It would also tend to make the voting electorate more moderate on the whole and less likely to be skewed by small but passionate extremist groups.

Hotel Tax Increase



Sunnyvale, like most cities in California, imposes a local sales tax on hotel rooms called the "Transient Occupancy Tax".

If someone from New York stays in a Sunnyvale hotel and has a medical emergency, they don't call the New York fire department for help. They call Sunnyvale 911 and get help from the Sunnyvale Department of Public Safety. Hotel residents can enjoy Sunnyvale parks during their visit, make use of Sunnyvale streets, and can take advantage of the same amenities and services that are provided to regular Sunnyvale residents. Since they don't live here and don't pay the normal taxes that residents pay, hotel guests pay a tax based on the cost of their hotel rooms. The measure on the ballot proposes an increase in the tax from 9.5% to 10.5%.

There is another aspect of the hotel tax that makes it very attractive as a means to help pay for city services. All of the other major taxes collected in Sunnyvale have been "consolidated" at the state level. Sales tax, property tax, the vehicle license fee, and all the other taxes are sent to the State of California and then distributed to cities and counties from there. Only the hotel tax is collected by Sunnyvale and never sent anywhere else.

Why does this matter? It matters because sometimes the State of California collects tax money and *doesn't* give it back to cities and counties.

During my years on the City Council there were a number of tricks and gimmicks played by the state government to redirect sales and property taxes away from cities and towards "State" priorities. Some of those tricks were successful and cities suffered as a result.

As Mary Bradley, former Finance Director for the City of Sunnyvale once told me, "The [hotel tax] is the sweetest and best for Sunnyvale because we don't have to share it with *anybody!*" It is the one tax that is completely under Sunnyvale's control and that cannot be confiscated by the State of California.

The people that might possibly be hurt by an increase in the hotel tax are the owners of Sunnyvale's hotels. Will a 1% increase in the tax rate drive hotel customers away? Probably not. The fact is that Sunnyvale's current Occupancy tax is below average. Raising it 1% would put it in line with the tax rate charged by other communities.

Gun Safety Regulations



The third ballot measure is one will create new law in Sunnyvale if is it adopted. The law will impose four new requirements: that thefts or losses of firearms be reported within 48 hours, that firearms be stored safely, that ammunition magazines be limited to a capacity of no more than 10 rounds and that sales of ammunition be tracked in Sunnyvale. There will be penalties for those who fail to comply with these requirements.

Would this new law mean that Sunnyvale Public Safety officers will be knocking on people's doors to check their gun safes or count the bullets they have on hand? Of course not. Law enforcement officers in California need to have *probable cause*, meaning they have provable reason to believe some crime or misdemeanor has taken place. No police officer will check your house to make sure you have trigger locks for your pistols. f, however (as has happened), your 3 year old grandson gets hold of your pistol and shoots himself because it had no trigger lock, his death would be treated as a crime and not just an accident, for which you would be responsible.

The pros and cons of each part of this law have been debated hotly all year in the national media so I won't go into them in detail here.

There is one aspect of this that deserves some examination, though. Why should this be a city ordinance at all? Why shouldn't this just be left to the state government?

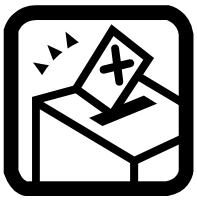
It is true that an ordinance in Sunnyvale wouldn't cover much territory.

If ammunition sales are tracked in Sunnyvale, wouldn't the "bad guys" just go buy their bullets in Mountain View instead?

(Continued on page 7)

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Sunnyvale Elections: 3 Measure to Choose



By Fred Fowler
(Continued from page 5)

California has some of the strictest gun laws in the nation, so why does Sunnyvale need its own ordinance?

I have some personal experience with what can happen when state and local laws overlap.

Back in the 1990s, Sunnyvale had its own campaign contribution ordinance limiting the amount that individual donors could give and other restrictions designed to make sure Sunnyvale's elections were open and honest.

In the mid-90s, a state proposition was passed that provided greater campaign restrictions on a statewide basis. Sunnyvale repealed its own ordinance since it initiative no longer necessary. A few years later the state initiative was found to be unconstitutional by the California Supreme Court and was struck down.

As a result, Sunnyvale now has NO campaign contribution limits. Sunnyvale chose to rely on state law, but state law changed. Sunnyvale started out with its own regulations, but now it has no regulations at all.

State level gun safety laws might make Sunnyvale's own ordinance redundant, but only as long as state laws don't change.
I was born in rural Georgia, where nature hasn't quite been tamed yet. A walk in the woods can be nice but it risks encountering puma, black bear, alligator, and five of the six deadly varieties of snake that exist in North America. Firearms there are a means of providing safety to one's self and to loved ones in the face of the dark side of nature. In places like rural Georgia (or Alaska, or Idaho) it is common for people to walk into banks and stores carrying loaded weapons. They are useful things to have in a wild environment, and good people expect each other to handle them responsibly.

There are no puma or black bear in Sunnyvale. There is no "wild side" of nature here. There are only the pressures of urban life with its stresses and its rat race. Silicon Valley can be a tough place to live. Pressure and stress and guns can be a deadly combination. In rural Georgia bullets are fired at wild life. In Sunnyvale, when bullets are fired they are fired at people. The norms of gun behavior in rural areas do not apply here. It is silly to think that the same laws should apply here as well.

In this article I have attempted to explain each measure as best I can. My opinion on each measure is solely my own and does not reflect any official stance of the LVNA or even this newsletter. If you have a different opinion that you wish to express, please feel free to submit it for publication in the November issue of ***the Villager.***

(Editor-Articles can be emailed to: sunnyphyl@gmail.com or mailed to Phyllis Fowler, 921 Lakebird Dr. Sunnyvale, 94089) ◆

Advanced Payment Scam



By Lt. Tracy Hern, Sunnyvale Department of Public Safety—Crime Prevention Unit

I wanted to pass along reminder information about scams and frauds that are targeting our community, and in particular senior adults.

Recently, I spoke with a Sunnyvale resident who was contacted about winning a Clearing House Sweepstakes. The man on the other end of the phone sounded very convincing, but she knew it sounded too good to be true. This man requested she wire $1400 for "insurance" purposes so that her winnings could be transferred to her. Our resident was very skeptical so the caller eased her concerns and told her someone from law enforcement would call her.

The next caller identified himself as an FBI agent and told her that he reviewed the documents and this was legitimate. He congratulated her and then told her to send the $1400. Our smart resident was still skeptical, but it was now sounding possible. The new caller offered her peace of mind by telling her that he would contact the Sunnyvale Police Department and provide them with the information. He told her that a police officer would then call her. About 20 minutes later she received another call from someone who claimed to be a police lieutenant with Sunnyvale Police. He assured her that this was not a scam and it was ok to send the money.

Learning point- In this particular scam, the third caller claimed to be a Sunnyvale police officer and in fact gave the full name of a current Sunnyvale police lieutenant. Further, the number that showed on her caller ID was 730-7100 which appeared to be our main information line. When our resident checked and saw that the number was truly associated with the Department of Public Safety she was really thinking that this was a possibility. Luckily, she told the caller that she would meet with them on Monday at the police station here in Sunnyvale to provide the money and finish the transaction. As you can imagine, they never called back or showed up.
This is a **CONFIRMED** scam known as an "advanced payment" scam. As a reminder, no government agency will contact you by phone suggesting, asking or telling you that it is ok to send money anywhere. Unless a celebrity shows up on your door step, you did not win a clearing house sweepstakes, sorry. If it sounds too good to be true, then it probably is a scam. If anyone asks you to send money first to get more money later, then it is a scam. Never wire transfer money to anyone you don't personally know and then if you do know them, only if you personally talk with them. Some scammers will infiltrate email and pose as a friend stuck somewhere needing money.

Additional information regarding these scams and other Internet Fraud safety tips can be found on the FBI website: www.fbi.gov
Thank you for your continued support of the City of Sunnyvale, Department of Public Safety.

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15th Annual Family Fun Night 2013

Date: **Wednesday, October 23**
Time: **6:30 – 8:30 pm**
Where: **Columbia Neighborhood Center**
739 Morse Ave. Sunnyvale
Cost: **FREE**

You're invited to the **15th annual Family Fun Night at CNC**. This free family event focuses on Halloween fun and safety, with interactive games, Face Painting, activities & prizes for youth of all ages.

Columbia Middle School will also offer Haunted House tours ($3 entry fee) and snacks as a school leadership program fundraiser. The Department of Public Safety staff will provide tips and reminders on how to have a safe and fun Halloween.

This event is a collaborative effort between the Departments of Library / Community Services and Public Safety, and is also supported by several community partners.

Volunteers are needed and must register as a City of Sunnyvale Volunteer at : Volunteering.inSunnyvale.com by October 9th .



Come on over and have a Spookily Good Time!

Sunnyvale Howl'oween Pet Parade & Faire



Saturday, October 26th, 2013
On the Saturday before Halloween, give yourself, your kids and your pet an opportunity to wear their Halloween costume twice by participating in this annual "eye candy" family event.
See some of the zaniest pet and human costumes, enjoy the "American Pet Idol" talent contest, pet themed arts & crafts vendors, products & information all geared toward your favorite pet & more!
Pet Parade will be on several downtown streets...
Faire will be held at Plaza del Sol.

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Neighborhood Crime Corner
HALLOWEEN TIPS

Halloween is an exciting time of year for kids, and to help ensure they have a safe holiday, here are some tips from the American Academy of Pediatrics (AAP).

ALL DRESSED UP:

Plan costumes that are bright and reflective. Make sure that shoes fit well and costumes are short enough to prevent tripping, entanglement or contact with flame.

When shopping for costumes, wigs and accessories look for a label that clearly indicating they are flame resistant.

Consider adding reflective tape or striping to costumes and Trick-or-Treat bags for greater visibility.

Because masks can limit or block eyesight, consider non-toxic makeup and decorative hats.

Have flashlights with fresh batteries for all children and their escorts.

ON THE TRICK-OR-TREAT TRAIL:

A parent or responsible adult should always accompany young children on their neighborhood rounds.

Only go to homes with a porch light on and never enter a home or car for a treat!
Remain on well-lit streets and always use the sidewalk. Pedestrian injuries are the most common injuries to children on Halloween.

Never cross between parked cars or out driveways. Stay in a group

Carry a cell phone for quick communication.

Don't assume the right of way. Motorists may have trouble seeing Trick-or-Treaters. Just because one car stops, doesn't mean others will!

HEALTHY HALLOWEEN:

A good meal prior to parties and trick-or-treating will discourage youngsters from filling up on Halloween treats.

Consider purchasing non-food treats for those who visit your home, such as coloring books, small toys, stickers, or pens and pencils.

Wait until children are home to sort and check treats. Though tampering is rare, a responsible adult should closely examine all treats and throw away any spoiled, unwrapped or suspicious items. ◆

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Important Phone Numbers

Public Safety - Emergency	911
Public Safety - Non-emergency	730-7100
Parks and Maintenance	730-7506
Speeding Cars, parking complaints, traffic signal	Dispatch 730-7180
Noise complaints—Desk Officer	730-7110
Neighborhood Preservation Complaints on decrepit fences, , weeds, illegal home businesses or rentals	730-7610
Animal Control	730-7178
Public Works- sidewalks, trees, streetlights, etc.	730-7505
Nuisance Vehicle Hotline	730-7706
Drug Hotline	245-3784
Graffiti Hotline & Shopping Cart Pickup	730-7680

Street Sweeping:

Fairwood Side - 10/8 & 10/22 & 11/5
Lakewood Side - 10/15 & 10/29 & 11/12

LVNA Contacts:

President - Judy Fernandez email: lakewoodvillagelvna@gmail,com

Editor - Phyllis Fowler sunnyphyl@gmail.com

Newsletter Delivery:

Fairwood Side - Fred Fowler (408) 747-1454
Lakewood Side- Wendy Stanley (408) 745-1331

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To submit articles or letters for publication, please contact the editor before the 28th of each month
Send your document or inquiry to Phyllis Fowler: sunnyphyl@gmail.com

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